

Toledo City Council deadlocks over future of Flock cameras

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Toledo City Council remains deadlocked over the future of the city's Flock surveillance cameras after a series of votes failed to advance a proposal to terminate the city's contracts with the company.

The council also gave a first reading to competing legislation that would allow the cameras to remain in use but impose new restrictions on how police use the technology and share the information it collects.

The council first considered delaying a decision for two weeks on the proposal to terminate the city's Flock contracts and deactivate the cameras, pending the results of an ongoing audit of the city's use of the technology. The measure was sponsored by five councilmen.

The 6-5 vote during Wednesday's regular council meeting fell short of the seven needed for the delay motion to carry. One member of the 12-member council,

Councilman Brittany Jones, was absent at the time.

Council then voted on the contract termination resolution itself, but it failed by a 6-5 vote.

When Councilman Jones arrived and asked for a revote, the council members tied 6-6 on whether the item should be relieved from committee.

Julie Gibbons, clerk of council, said after the meeting that in case of a tied council, it is usually up to the mayor to break the tie.

“The resolution is still sitting in committee,” Toledo Mayor Wade Kapszukiewicz, who was absent from the meeting, said in a text message when asked for comment. “It did not receive an official vote tonight. There is no tie for me to break.”

Just before Councilman Jones arrived, the council considered the alternative legislation, sponsored by Councilman Adam Martinez, that would allow the city to retain its Flock contracts while prohibiting certain uses of the technology, including sharing data related to immigration status, reproductive health care, and gender-affirming care. Mr. Martinez introduced the ordinance during an Oct. 27 agenda review meeting.

Without voting, the council referred the proposed legislation to its Public Safety & Criminal Justice Reform Committee.

Most of the discussion during the meeting was just before the council voted on the two-week delay.

Councilman Sam Melden said he didn’t believe the council needed to delay its decision.

“I just want to suggest that we know,” he said. “I think we know what we think. I just have a hunch that all my colleagues know in their bones what they want to do.”

“The core duty of the job is to represent people and to say yes or no,” he continued. “So I hope we get to call the question sooner rather than later.”

Councilman Cerssandra McPherson disagreed.

“It’s not a yes or no when I don’t know, and I don’t have all of the information,” Ms. McPherson said, noting that she has constituents on both sides of the issue. “I

take an insult when someone says to me, it’s a yes or no, because really it’s because I don’t have everything that I need to make a substantial decision on it, and I just don’t go by what [some] constituents say because I have to have evidence to follow on that.”

The alternative ordinance developed by Mr. Martinez also calls for the Toledo Police Department to develop a policy to prevent the use of emerging technologies to stalk, harass, racially profile, or retaliate against citizens.

It also allows for monthly reviews of Flock data sharing to identify and manually remove law enforcement agencies that have agreements with U.S. Immigration and Customs Enforcement under the federal 287(g) program. Those agreements authorize certain state and local officers to carry out immigration enforcement duties.

Councilman John Hobbs III, chairman of the Public Safety & Criminal Justice Reform Committee, said after the meeting that the committee will likely consider Mr. Martinez’s ordinance when it meets Dec. 3.

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